

CITY OF FRANKLIN, NEW HAMPSHIRE

ORDINANCE: SHORT-TERM RENTALS

Section 1. Authority and Purpose

This Ordinance is adopted pursuant to the City's general police powers under New Hampshire law to protect public health, safety, and welfare.

The purpose of this Ordinance is to:

- Allow short-term rentals while preserving neighborhood character
 - Ensure basic life-safety standards
 - Provide accountability for complaints
 - Establish registration system
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Section 2. Definitions

Short-Term Rental (STR):

The rental of a dwelling unit, or any portion thereof, for a period of fewer than thirty (30) consecutive days.

Owner-Occupied STR:

An STR in which the owner maintains the property as their primary residence and resides on-site during rental periods.

Non-Owner-Occupied STR:

An STR in which the dwelling unit is rented in its entirety and the owner is not present.

Local Contact:

A natural person designated by the owner who is available 24 hours per day, 7 days per week, and able to respond to the property within two hours.

Section 3. Registration Required

A. Annual Registration

No person shall operate a short-term rental without first registering the property with the City.

B. Application Requirements

Registration shall be completed annually on a form provided by the City and shall include:

- Owner name and contact information
- Property address
- Designation as owner-occupied or non-owner-occupied
- Name and contact information for Local Contact
- Maximum occupancy
- Number of bedrooms

C. Fee

An annual registration fee shall be \$100.

D. Term

Registration shall be valid for one (1) year.

E. Non-Transferability

Registration shall not transfer upon sale or change of ownership.

Section 4. Self-Certification of Safety

The owner shall annually certify that the property complies with the following:

- Smoke alarms installed and functional in accordance with New Hampshire law
- Carbon monoxide detectors installed and functional as required
- At least one (1) portable fire extinguisher is available
- Clearly posted emergency information is within the unit
- Appropriate level of liability insurance is maintained

No routine inspection shall be required unless initiated by complaint or enforcement action.

Section 5. Operational Requirements

A. Occupancy Limits

Maximum occupancy shall not exceed:

Two (2) persons per bedroom plus two (2) additional persons

B. Local Contact Requirement

- Must be available 24/7
- Must respond within two hours of notification

- Must be authorized to take corrective action

C. Plot Plan

- A plot plan showing boundaries, all buildings, number of bedrooms, types of water and sewer service, and proposed parking areas, shall be submitted
- Parking shall not obstruct sidewalks or neighboring driveways

D. Posting Requirements

The following shall be posted in a visible location within the unit:

- Maximum occupancy
 - Parking instructions
 - Trash disposal instructions
 - Quiet hours
 - Local contact information
 - Property address
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Section 6. Compliance with Other Laws

All STRs shall comply with:

- Chapter 215 City of Franklin Noise ordinance
 - Chapter 146 City of Franklin Disorderly Residence ordinance
 - New Hampshire Meals and Rentals Tax requirements
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Section 7. Prohibited Uses

- Short-term rentals shall not be used for commercial events
 - Outdoor amplified sound during established quiet hours is prohibited
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Section 8. Enforcement

A. Complaint-Based Enforcement

Enforcement shall be primarily complaint-driven.

B. Authority

This Ordinance may be enforced by the Code Enforcement Officer, Police Department, or other designated officials.

C. Records

The City may maintain a record of complaints and violations associated with each property.

Section 9. Violations and Penalties

Violations shall be assessed against the property owner.

A. Graduated Penalties (within a 12-month period):

1. First violation: Written warning
 2. Second violation: \$250 fine
 3. Third violation: \$500 fine
 4. Fourth violation: Suspension of registration for up to ninety (90) days
 5. Subsequent or severe violations: Revocation of registration
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Section 10. Suspension and Revocation

The City may suspend or revoke a registration for:

- Repeated violations
- Failure to maintain required conditions
- Providing false information

Section 11. Effective date

This ordinance shall take effect January 1, 2027